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Case Number: NAIH-131-1/2024 Subject: Decision and termination of proceedings  
Previous Case Number: NAIH-837/2023; NAIH-8328/2022 Case Officer:

The National Authority for Data Protection and Freedom of Information (hereinafter: Authority) [...] in the data protection authority procedure initiated on November 3, 2022, by the application submitted electronically by the applicant (hereinafter: Applicant) regarding the camera data processing conducted by [...] (hereinafter: Respondent), makes the following decisions:

The Authority partially grants the Applicant's request in its decision and

I. finds the Respondent in violation of Article 6(1) of Regulation (EU) 2016/679 (hereinafter: General Data Protection Regulation or GDPR) regarding the protection of natural persons in relation to the processing of personal data and the free movement of such data, as well as the repeal of Directive 95/46/EC, based on point b) of Article 58(2) of the GDPR, because the Respondent monitored the jointly owned property (hereinafter: Property) and the public area with two cameras installed on the property at number [...] without a proper legal basis.

II. The Authority rejects the Applicant's requests for the imposition of a fine and for the prohibition of the Respondent from the infringement.

III. The Authority terminates the data protection authority procedure regarding the Applicant's request for the removal of the cameras.

There is no administrative remedy against the decision, but it can be challenged in an administrative lawsuit addressed to the Metropolitan Court within 30 days from the communication. The lawsuit must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the lawsuit. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the lawsuit is subject to the right to defer the fee. Legal representation is mandatory in proceedings before the Metropolitan Court.

There is no administrative remedy against the decision, but it can be challenged in an administrative lawsuit addressed to the Metropolitan Court within 30 days from the communication. In the lawsuit against the decision, the court will proceed in a simplified manner, outside of a hearing. The lawsuit must be submitted electronically to the Authority, which will forward it to the court along with the case documents. A request for a hearing must be indicated in the lawsuit. For those not fully exempt from personal fees, the administrative lawsuit fee is HUF 30,000, and the lawsuit is subject to the right to defer the fee. Legal representation is mandatory in proceedings before the Metropolitan Court.

1 The form for initiating the administrative lawsuit is called NAIH\_K01: NAIH\_K01 form (2019.09.16.)  
The form can be filled out using the general form filling program (ÁNYK program).  
The form is available at the following link: <https://www.naih.hu/kozig-hatarozat-birosagi-felulvizsgalata>  
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IN D OK OLÁ S

I. Procedure

(1) The Applicant submitted a request for the initiation of a data protection authority procedure on November 3, 2022, which the Authority registered under case number NAIH-8328-1/2022. In its decision under case number NAIH-8328-2/2022, the Authority called upon the Applicant to remedy the

deficiencies in the request, which the Applicant complied with by submitting a statement registered by the Authority under case number NAIH-837-2/2023.

(2) Subsequently, in its decision under case number NAIH-837-3/2023, the Authority called upon the Respondent to provide a statement for the clarification of the facts, to which the Respondent replied with electronic letters registered by the Authority under case numbers NAIH-837-4/2023 and NAIH-837-5/2023.

(3) In the statement registered by the Authority under case number NAIH-837-5/2023, the Applicant submitted a request for access to documents, which the Authority granted in its decision under case number NAIH-837-13/2023, attaching a simple copy of all documents submitted by the Respondent up to that point as an annex to this decision.

(4) In order to ensure the proper form of the statement, the Authority again called upon the Respondent to provide a statement in its decision under case number NAIH-837-6/2023, to which the Respondent replied with statements registered by the Authority under case numbers NAIH-837-7/2023, NAIH-837-8/2023, and NAIH-837-9/2023.

(5) For further clarification of the facts, the Authority again called upon the Respondent to provide a statement in its decision under case number NAIH-837-10/2023, to which the Respondent replied with statements registered by the Authority under case numbers NAIH-837-11/2023 and NAIH-837-12/2023.

(6) Subsequently, in its decision under case number NAIH-837-14/2023, the Authority imposed a procedural fine on the Respondent and again called upon the Respondent to provide a statement for the proper clarification of the facts. The Respondent complied with the call for a statement with a statement registered by the Authority under case number NAIH-837-15/2023, and paid the imposed procedural fine on October 29, 2023.

(7) For the clarification of the facts, the Authority contacted the clerk of [...] (hereinafter: Clerk) to conduct an on-site inspection of the Property. The Clerk complied with the Authority's request on October 20, 2023, which was confirmed by a statement registered by the Authority under case number NAIH-837-18/2023 and its annexes.

(8) In its decisions under case numbers NAIH-837-19/2023 and NAIH-837-20/2023, the Authority informed the parties about the completion of the evidentiary procedure and, according to the operative parts of the decisions, called upon them to submit their requests for access to documents, evidentiary motions, and statements. The Applicant did not receive the decision under case number NAIH-837-19/2023 within the fifth working day following the second notification; the certificate of failure regarding this was issued on December 23, 2023. The Respondent received the decision under case number NAIH-837-20/2023 on December 7, 2023. Subsequently, the parties did not submit any further statements during the data protection authority procedure.

## II. Clarification of the Facts

(9) On November 3, 2022, the Applicant submitted a request to the Authority, stating that the Respondent had installed cameras on the Property. According to the Applicant, despite the objections of the Applicant and the other co-owners of the Property, the Respondent monitors the jointly owned Property and the public area with the cameras.

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(10) The Applicant requested the Authority to establish the fact of the Respondent's unlawful conduct, to oblige the Respondent to dismantle the cameras, to prohibit the Respondent from further unlawful conduct, and to impose a fine on the Respondent.

(11) The Respondent stated in their declarations that they operate two cameras on the Property due to previous vandalism incidents that occurred on the Property. One camera monitors the sidewalk located in the public area in front of the Property, while the other camera observes the courtyard of the Property, which the Respondent supported with attached photographs. During the recording of the

camera footage, the Respondent applies masking. Based on the photographs attached to the Respondent's declaration, in the case of the camera observing the courtyard of the Property, the upper part above the fence and a large portion of the fence surface were masked; in the case of the camera installed on the façade of the Property, a larger part of the road beyond the sidewalk was masked. According to the Respondent's statements, the camera footage is not transmitted to third parties.

(12) In later statements, the Respondent indicated that the use of the cameras had become unnecessary and that the Applicant's entrance opens from another street, thus the camera data processing did not affect the Applicant. Subsequently, the Respondent sent the Authority the purchase agreement concerning the Property and reiterated that they had ceased the operation of the camera system.

(13) In its decision with case number NAIH-837-16/2023, the Authority contacted the Notary to conduct an on-site inspection of the Property. The Notary complied with the Authority's request on October 20, 2023. The Respondent was not present at the Property during the on-site inspection; however, the Applicant and [...] the tenant were present, who stated that they had terminated the operation of the camera by disconnecting it, and the Respondent had dismantled the cameras themselves. The Notary summoned the Respondent for a statement on October 27, 2023, during which the Respondent confirmed that the operation of the cameras was justified for the protection of their flowers and the Property. The Respondent no longer needs the cameras, therefore the indoor unit was disconnected by the tenants of the Property after July 1, 2023, and on October 9, 2023, the external part of the camera system was also removed. The Notary also established during the on-site inspection that there are no cameras on the Property, only warning pictograms regarding camera data processing. The Notary supported this statement with a letter filed by the Authority under case number NAIH-837-18/2023, along with the attached minutes with case numbers 05/2222-2/2023 and 05/2222-4/2023 and photographs.

(14) Based on the available evidence (the statements of the clients, as well as the purchase agreements presented during the data protection authority procedure), the Property is co-owned by the Applicant, the Respondent, and other individuals.

### III. Applicable legal provisions

(15) According to Article 2(1) of the General Data Protection Regulation, this regulation applies to the processing of personal data that is carried out by automated means, as well as to the non-automated processing of personal data that forms part of a filing system or is intended to form part of a filing system.

(16) According to Article 2(2)(c) of the General Data Protection Regulation, the General Data Protection Regulation does not apply to the processing of personal data by natural persons in the course of purely personal or household activities.

(17) According to recital (18) of the General Data Protection Regulation, the GDPR does not apply to the processing of personal data by a natural person in the course of purely personal or household activities, which is thus not related to any professional or commercial activities. Activities such as correspondence, address book storage, and maintaining contact through social networks and online activities within the framework of such personal and household activities are considered personal or household activities. However, the GDPR applies to those

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data controllers and data processors who provide the means for the processing of personal data in the context of such personal or household activities.

(18) According to Article 4(1) of the General Data Protection Regulation, personal data is any information relating to an identified or identifiable natural person ("data subject"); an identifiable natural person is one who can be identified, directly or indirectly, particularly by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that

natural person.

(19) According to Article 4(2) of the General Data Protection Regulation, processing of personal data means any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction.

(20) According to Article 4(7) of the General Data Protection Regulation, a data controller is the natural or legal person, public authority, agency, or any other body which determines the purposes and means of the processing of personal data, alone or jointly with others; where the purposes and means of such processing are determined by Union or Member State law, the data controller or the specific criteria for the designation of the data controller may also be provided for by Union or Member State law.

(21) According to Article 6(1) of the General Data Protection Regulation, the processing of personal data shall be lawful only if and to the extent that at least one of the following applies:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;
- c) the processing is necessary for compliance with a legal obligation to which the data controller is subject;
- d) the processing is necessary in order to protect the vital interests of the data subject or of another natural person;
- e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the data controller;
- f) the processing is necessary for the purposes of the legitimate interests pursued by the data controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular if the data subject is a child.

The first subparagraph (f) shall not apply to processing carried out by public authorities in the performance of their tasks.

(22) According to Section 2(2) of Act CXII of 2011 on the Right to Informational Self-Determination and on Freedom of Information (hereinafter: Infotv.), the General Data Protection Regulation shall be applied to the processing of personal data falling within its scope with the deviations specified in the Infotv.

(23) According to Sections 60(1)-(2) of the Infotv., in order to ensure the enforcement of the right to the protection of personal data, the Authority shall initiate a data protection authority procedure at the request of the data subject.

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The authority may initiate a data protection authority procedure ex officio. A request for the initiation of a data protection authority procedure may be submitted in the cases defined in Article 77(1) of the General Data Protection Regulation and in point b) of Section 22.

(24) According to Article 77(1) of the General Data Protection Regulation, without prejudice to other administrative or judicial remedies, every data subject has the right to lodge a complaint with a supervisory authority – particularly in the Member State of their habitual residence, place of work, or the place of the alleged infringement – if the data subject believes that the processing of personal data concerning them infringes this Regulation.

(25) Unless otherwise provided by the General Data Protection Regulation, the provisions of Act CL of 2016 on the General Rules of Administrative Procedure (hereinafter: Ákr.) shall apply to the data

protection authority procedure initiated by request, with the deviations defined in the Infotv.

(26) According to point c) of Section 47(1) of the Ákr., the authority shall terminate the procedure if it has become unnecessary.

(27) According to point b) of Section 51(1) of the Ákr., if the authority exceeds the administrative deadline, it shall pay the applicant a sum equivalent to the fee payable for the conduct of the procedure or the administrative service fee paid for administrative authority procedures as defined by the law on fees, or in the absence thereof, ten thousand forints, and the applicant shall also be exempt from the payment of procedural costs.

(28) According to Section 60/A(1) of the Infotv., the administrative deadline in the data protection authority procedure is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for clarifying the facts until its fulfillment.

(29) According to point a) of Section 61(1) of the Infotv., in its decision made in the data protection authority procedure, the Authority may apply the legal consequences defined in the General Data Protection Regulation in connection with the data processing operations defined in Section 2(2) and (4) of the Infotv.

(30) According to point b) of Article 58(2) of the General Data Protection Regulation, in exercising its corrective powers, the supervisory authority:

b) reprimands the data controller or the data processor if their data processing activities have violated the provisions of this Regulation.

(31) According to Section 38(2) of the Infotv., the Authority's task is to monitor and promote the enforcement of the right to the protection of personal data, as well as the right to access public interest and publicly available data, and to facilitate the free flow of personal data within the European Union.

(32) According to Section 60/A(1) of the Infotv., the administrative deadline in the data protection authority procedure is one hundred and fifty days, which does not include the time from the call for the provision of data necessary for clarifying the facts until its fulfillment.

#### IV. Decision

##### IV.1. The identity of the data controller

(33) According to point 1 of Article 4 of the GDPR, the image of the data subject is considered personal data, and the person identified or identifiable based on it is considered a data subject, and the creation of such recordings is considered data processing under point 2 of Article 4 of the GDPR.

Consequently, the Applicant may be considered a data subject during the data processing, as their image may become identifiable based on the recordings made by two cameras installed on the Property.

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(34) According to Article 7 of the GDPR, a person who makes recordings with a camera is considered a data controller. The Applicant independently decided on the installation of the cameras, determining their purposes and means, and also independently carried out the installation and operation, thus qualifying as a data controller in this case.

##### IV.2. General Information on Camera Data Processing

(35) The use of cameras/camera systems—based on their placement and field of view—may be suitable for monitoring other private areas or public spaces, capturing recordings related to other properties, which may infringe upon the rights and privacy of individuals being monitored by the camera.

(36) Data processing conducted by a camera/camera system operated by a private individual falls under the scope of the GDPR if it does not qualify as household data processing, i.e., if the exception outlined in Article 2(2)(c) of the General Data Protection Regulation is not applicable. The (18) preamble provides examples of personal or household activities referred to in this legal provision, such

as correspondence, address book storage, maintaining contact on social networks within the framework of personal and household activities, and other online activities. However, it is important to emphasize that—as established by the Court of Justice of the European Union in the so-called Rynes judgment—the exception rule for personal data processing must be interpreted narrowly. According to this judgment, camera surveillance—inasmuch as it extends to individuals located outside the property—does not fall under the aforementioned exception.

(37) This practice was also maintained by the guidelines issued by the European Data Protection Board, specifically guideline 3/2019. Paragraph 27 of Chapter 3.1.2 of these guidelines states that, in general, the application of a camera surveillance system established for the purpose of monitoring one's own property may extend to the boundary of the area, while acknowledging that in exceptional cases, there may arise a situation where the scope of camera surveillance cannot be limited to within one's own property, as this would not provide sufficiently effective protection. With appropriate technical or organizational measures (such as masking areas that are not relevant to the purpose of surveillance or filtering the observed area with IT tools), the data controller may exceptionally be entitled to extend camera surveillance minimally to the immediate environment of their own property.

(38) However, if the individual does not implement solutions that mask public spaces or other private areas within the camera's field of view, or operates a camera system that specifically monitors public spaces or other private areas, they become a data controller, and their activities do not qualify as personal data processing, thus they must comply with all provisions set forth for data controllers in the General Data Protection Regulation. By applying masking, the area monitored by the camera can be narrowed down to the area that is in the possession of the data controller. However, if the field of view of the cameras extends beyond the privacy of the individual conducting data processing with the camera surveillance system—such as to public spaces, areas belonging to the common property of a condominium, or areas owned by other third parties—it cannot be considered a "personal or household" activity falling under the aforementioned exception. Therefore, the specific data processing activity falls under the scope of the General Data Protection Regulation, to which the principles outlined in Article 5 of the General Data Protection Regulation must apply, and for which a valid legal basis under Article 6 of the General Data Protection Regulation is required.

#### IV.3. The Authority's Decision on the Legality of Data Processing

2 C 212/13. case - <http://curia.europa.eu/juris/document/document.jsf?docid=160561&doclang=HU>  
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(39) A camera operated by private individuals may only monitor areas that are owned by them in the absence of a proper legal basis; thus, its field of view cannot extend to private property owned by others or to public areas. When setting the camera's field of view, efforts must be made to ensure that it does not extend beyond the boundaries of the area for personal use, and that the privacy of passersby is not violated. If the field of view cannot be fully directed to the area for personal use and extends into another private area or public space, the camera must be equipped with a masking function, and the area in question must be obscured, or the conditions for lawful data processing must be established by applying an appropriate legal basis.

(40) Based on the established facts, the Applicant monitored the public area with a camera installed on the facade facing Ingatlan Street, thus this camera data processing would only be lawful if a proper legal basis existed for the aforementioned reasons. The Authority also found that the other camera monitored the courtyard of the Property, which, based on the available evidence, is co-owned, thus this data processing can also only be conducted lawfully if a proper legal basis exists.

(41) In the present case, the camera data processing presented is typically supported by the legitimate interest as defined in Article 6(1)(f) of the GDPR as a proper legal basis. In this context, the data controller must conduct a balancing of interests to demonstrate that the interests of the data controller take precedence over the interests and rights of the data subjects. The purpose indicated by the Applicant may potentially be achieved through camera surveillance; however, the necessity and proportionality of this data processing must also be considered, in relation to which the Authority does

not regard the camera data processing directed at the public area and the co-owned area of the Property as the only suitable means to protect the assets located on the Property. Furthermore, from the perspective of the requirement of proportionality, the Authority does not find the data processing concerning the two cameras to be appropriate. In this way, the constant data processing that extends to everyone without restriction is disproportionate when compared to the interest in protecting the personal data of co-owners and other affected individuals present on the Property who enter the field of view of the cameras, as well as those passing by on the sidewalk, which is a public area.

(42) Based on the recordings, it can be established that the Applicant did apply masking on the recordings of both cameras; however, it was not done in an appropriate manner/extent, as this solution did not obscure all areas that could not be lawfully monitored without a proper legal basis, since the courtyard of the Property and the sidewalk located in the public area were still monitored by the cameras.

(43) Consequently, based on the above, the Authority established in its decision at the request of the Applicant that the Applicant violated Article 6(1) of the GDPR by monitoring the co-owned Property and the public area, as it processed the personal data of the Applicant and individuals present in the public area without a proper legal basis.

#### IV.4. The Authority's decision regarding the request for prohibition of the infringement

(44) In its request, the Applicant asked the Authority to order the Applicant to refrain from the infringement.

(45) Regarding the prohibition of the future processing of personal data, the Authority established that this is a request directed at an uncertain future event, for which neither the scope of the data intended to be processed in the future nor their legal basis can be determined, thus it cannot be excluded that their processing could occur with a proper legal basis and lawfully, just as it cannot be stated that it would occur unlawfully and without a legal basis. Therefore, prohibiting this cannot be the subject of an administrative procedure, and no substantiated decision can be made regarding this.

(46) In light of the above, the Authority rejected this request of the Applicant in its decision.

#### IV.5. The Authority's decision regarding the request for the imposition of a fine

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(47) The Applicant also requested the imposition of a fine on the Respondent due to unlawful data processing.

(48) The imposition of a fine does not directly affect the rights or legitimate interests of the Applicant; such a decision by the Authority does not create rights or obligations for the Applicant. Therefore, regarding this legal consequence, which falls within the scope of public interest enforcement, the Applicant does not qualify as a client under Section 10 (1) of the Administrative Procedure Act (Ákr.). Since this request also does not meet the requirements of Section 35 (1) of the Ákr., there is no basis for submitting a request in this regard, and this part of the submission cannot be interpreted as a request.

(49) The Authority examined ex officio whether it was justified to impose a data protection fine due to the Respondent's infringement. In this context, the Authority assessed all circumstances of the case ex officio based on Article 83 (2) of the GDPR and Section 75/A of the Information Act (Infotv.) and determined that imposing a fine in this procedure is not necessary due to the Respondent's first-time infringement.

(50) Based on the above, the Authority rejected the Applicant's request for the imposition of a fine in its decision.

#### IV.6. The Authority's decision regarding the request for the removal of cameras

(51) In the request, the Applicant asked the Authority to have the examined cameras removed.

(52) Based on the statements of the Respondent and the documentation from the site inspection

conducted by the Notary, the Authority established that there are no longer any cameras operating on the Property, as they have been removed and the central unit operating them has also been disconnected.

(53) Consequently, the data protection authority procedure became moot regarding this request from the Applicant; therefore, the Authority terminated it in its order based on Section 47 (1) c) of the Ákr.

#### V. Legal Consequences

(54) At the request of the Applicant, the Authority established that the Respondent violated Article 6 (1) of the GDPR by monitoring the courtyard of the Property and the public area, as the personal data of the Applicant and the individuals present in the public area were processed without an appropriate legal basis. The Authority found the Respondent liable under Article 58 (2) b) of the GDPR.

(55) In its decision, the Authority rejected the Applicant's requests for the imposition of a fine and for an injunction against the infringement.

(56) In its order, the Authority terminated the data protection authority procedure regarding the request for the removal of cameras based on Section 47 (1) c) of the Ákr.

#### VI. Other Questions

(57) The Authority's jurisdiction is defined by Section 38 (2) and (2a) of the Infotv., and its competence extends to the entire territory of the country.

(58) Based on Section 112 (1), Section 116 (1), and Section 114 (1) of the Ákr., there is a right to legal remedy against the decision through administrative litigation.

(59) According to Section 112 (2) d), Section 116 (1), and Section 114 (1) of the Ákr., there is a right to legal remedy against the order through administrative litigation.

(60) The rules of administrative litigation are defined by Act I of 2017 on Administrative Litigation (hereinafter: Kp.). According to Section 12 (1) of the Kp., administrative litigation against the Authority's decision falls under the jurisdiction of the court, and based on Section 13 (3) a) aa) of the Kp., the Budapest Metropolitan Court is exclusively competent for the case.

(61) According to Section 124 (2) c) of the Kp., in the absence of a different provision in the law, the court shall proceed in simplified proceedings regarding the decision terminating the procedure. According to Section 124 (5) of the Kp., the simplified proceedings shall be adjudicated by the court outside of a hearing.

(62) Based on Section 27 (1) b) of the Kp., legal representation is mandatory in cases falling under the jurisdiction of the Budapest Metropolitan Court. According to Section 39 (6) of the Kp., unless otherwise provided by law, the submission of the statement of claim does not have a suspensive effect on the validity of the administrative act.

(63) According to Section 29 (1) of the Kp. and in consideration of Section 604 of the Civil Procedure Act (Pp.), under Section 9 (1) b) of Act CCXXII of 2015 on Electronic Administration (hereinafter: E-ügyintézési tv.), the client's legal representative is obliged to maintain electronic communication.

(64) The time and place for submitting the statement of claim are determined by Section 39 (1) of the Kp. Information regarding the possibility of requesting a hearing is based on Sections 77 (1)-(2) of the Kp. The amount of the administrative litigation fee is determined by Section 45/A (1) of Act XCIII of 1990 on Fees (hereinafter: Itv.). The Itv. exempts the initiating party from the advance payment of the fee under Section 59 (1) and Section 62 (1) h).

(65) The Authority exceeded the administrative deadline set by Section 60/A (1) of the Infotv., therefore the Applicant is entitled to 10,000 HUF, that is, ten thousand forints – at their choice – by bank transfer or postal money order based on Section 51 (1) b) of the Ákr.

Issued: Budapest, according to the electronic signature and timestamp



Dr. habil. Attila Péterfalvi  
President  
Professor Emeritus